

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Team # 6	CCRB Case #: 201401653	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury		
Incident Date(s) Monday, 02/17/2014 9:42 PM	Location of Incident: West 138th Street and Fifth Avenue		18 Mo. SOL 8/17/2015		Precinct: 32
Date/Time CV Reported Wed, 02/19/2014 5:15 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Thu, 02/20/2014 8:38 AM		

Complainant/Victim	Type	Home Address

[illegible]

Subject Officer(s)	Shield	TaxID	Command
1. POM Benjamin Bello	21783	952456	PBMN
2. POM Paul Savas	17514	942917	TV UNIT
3. SGT Michael Verbrugge	01685	940835	PBMN

Officer(s)	Allegation	Investigator Recommendation
A . POM Benjamin Bello	Force: PO Benjamin Bello pointed his gun at § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . SGT Michael Verbrugge	Force: Sgt. Michael Verbrugge pointed his gun at § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Benjamin Bello	Discourtesy: PO Benjamin Bello spoke discourteously to § 87(2)(b)	C . Substantiated
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On February 19, 2014, § 87(2)(b) filed this complaint in-person at the 32nd Precinct stationhouse. § 87(2)(b) § 87(2)(b) filed the complaint on behalf of himself, § 87(2)(b) and § 87(2)(b). On March 3, 2014, the complaint was forwarded to the CCRB via IAB log #2014-06405. § 87(2)(b) also filed a complaint with the CCRB directly via telephone on February 20, 2014.

At approximately 9:42 p.m. on February 17, 2014, Sgt. Michael Verbrugge and PO Benjamin Bello of the 32nd Precinct interrupted the filming of ‘§ 87(2)(b)’ mistaking a scene involving a carjacking for an actual crime. The following allegations resulted:

- **Allegation A: Force – PO Benjamin Bello pointed his gun at § 87(2)(b) and § 87(2)(b)**

- **Allegation B: Force – Sgt. Michael Verbrugge pointed his gun at § 87(2)(b) and § 87(2)(b)**

§ 87(2)(g) Therefore, it is recommended that **Allegations A and B** be closed as **exonerated**.

- **Allegation C: Discourtesy – PO Benjamin Bello spoke discourteously to § 87(2)(b)**

§ 87(2)(g) Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

- § 87(4-b) § 87(2)(g)
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§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *old at the time of the incident, is a § 87(2)(b) Hispanic male. He is bald, and has brown eyes.* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on February 25, 2014 (Encl. 7A-D). § 87(2)(g)

On February 17, 2014, § 87(2)(b) was involved in the production of the movie “§ 87(2)(b)” filming near the intersection of West 138th Street and Fifth Avenue, in Manhattan. The movie is § 87(2)(b). § 87(2)(b) is an actor, and was portraying an NYPD officer. § 87(2)(b) had obtained all of the proper filming permits through the Mayor’s Office of Media and Entertainment, the FDNY and the NYPD. As the movie involved scenes of simulated gunfire, a uniformed officer from the NYPD’s Movie and TV Unit, PO Paul Savas, was assigned to oversee the production.

Production had started at approximately 4:00 p.m., and continued on into the evening. Two scenes were shot that day. The first scene involved actors firing prop firearms. Before each take, PO Savas would broadcast over the radio that the production was going to be discharging their firearms, to ensure that the officers from the local precincts would not respond to it as a real shooting. The production filmed several takes of the first scene, all without any difficulty.

By the evening, the production moved on to a second scene. While this scene featured actors holding prop firearms, there was no simulated gunfire. As such, PO Savas issued no warnings, by radio or other means, before the scene. In this second scene, two plainclothes officers interrupt an armed carjacking. The victim of the carjacking was played by § 87(2)(b) and the perpetrator was played by § 87(2)(b). § 87(2)(b) played one of the officers. § 87(2)(b) identified the other actor playing a police officer as “§ 87(2)(b)” but the investigation later identified him as § 87(2)(b). § 87(2)(b) and § 87(2)(b) both wore bulletproof vests and wore prop shields around their necks, but were otherwise dressed in plainclothes. § 87(2)(b) § 87(2)(b) and § 87(2)(b) all carried prop firearms.

The scene was filmed next to two cars parked on the western side of the intersection of West 138th Street and Fifth Avenue. § 87(2)(b) approaches § 87(2)(b) and points his gun at him. § 87(2)(b) and § 87(2)(b) characters come running around the side of one of the cars and point their guns at § 87(2)(b) and shout for him to drop his weapon. The scene was filmed by a crew consisting of approximately twenty people. The production had very little equipment with it, and was recorded only using a single camera and a boom microphone. The crew had not blocked off the street, and filmed using only the lighting provided by the street lamps. No signage was posted in the area to announce the production. The crew members all stood on the sidewalk, approximately forty feet away from where the actors stood.

By approximately 9:42 p.m., the production had filmed several takes of the second scene without incident. During a subsequent take, however, a marked police cruiser pulled up across the street from the production as § 87(2)(b) and § 87(2)(b) pointed their prop guns at § 87(2)(b) § 87(2)(b) stated that four uniformed officers exited this car and approached them. The investigation, however, determined that only two uniformed officers, PO Benjamin Bello and Sgt. Michael Verbrugge of the 32nd Precinct, approached at first. PO Bello ran up towards the actors and pointed his gun towards them, alternately pointing it at § 87(2)(b) and § 87(2)(b). He shouted, “If you don’t identify yourself in ten seconds, I’m going to shoot,” and, “What the fuck

is going on here?” § 87(2)(b) did not recall if Sgt. Verbrugge drew his gun or made any statements towards the crew or the actors.

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) all immediately dropped their guns. All three actors told PO Bello that they were only filming a movie. PO Bello ignored them, stating, “You better identify yourself or somebody’s gonna get shot.” He then asked § 87(2)(b) if he was a police officer. § 87(2)(b) explained again that he was an actor, and that they were only filming a movie. § 87(2)(b) also told PO Bello that they were only actors. PO Bello told § 87(2)(b) “I don’t give a fuck.” PO Savas then approached PO Bello and tried to explain the situation to him. In response, PO Bello pointed his gun at PO Savas and told him, “If you don’t identify yourself in ten seconds, I’m going to shoot you.” Eventually, however, PO Savas was able to convince PO Bello that they were only filming a movie. PO Bello then finally holstered his gun.

Shortly after PO Bello holstered his weapon, several uniformed officers arrived at the location. § 87(2)(b) did not recall any of these officers drawing their weapons, threatening the crew, or using any profanity. As these officers arrived, PO Bello shouted, “You got my fucking squad out here. Here come the rest of them. What the fuck are you guys doing?” § 87(2)(b) then asked PO Bello why he had taken his gun out and threatened the actors. In response, PO Bello charged towards § 87(2)(b) asking him, “What’s your fucking problem?” A member of the crew, identified by the investigation as the § 87(2)(b) stepped between PO Bello and § 87(2)(b). PO Bello told § 87(2)(b) “Are you fucking kidding me?” Several of the responding officers approached PO Bello to calm him down, as members of the crew pulled § 87(2)(b) away to prevent him from antagonizing PO Bello any further.

The officers then stepped aside and spoke among themselves for several minutes. They eventually returned to their vehicles and departed the location. No arrests were made, and no summonses were issued. Once the officers left, the cast and crew filmed one additional take of the second scene before leaving the intersection.

During his interview, § 87(2)(b) played video footage from the film’s main camera, showing the scene the officers interrupted. He identified the black male in street clothes holding a gun as § 87(2)(b), the light-skinned male in the gray sweatshirt as § 87(2)(b) and the dark-skinned male wearing a vest as himself. He identified the uniformed officer seen running towards the camera as the officer who pointed his weapon at him, threatened him, and used profanity.

§ 87(2)(b) also played video footage taken from one of the crew members’ cell phones. While the footage had been provided to § 87(2)(b) by § 87(2)(b) the production’s camera man, the video was taken by an unidentified female, whose name § 87(2)(b) did not provide. In it, he identified the white male as § 87(2)(b). He stated that the officer seen yelling at § 87(2)(b) in the cell phone footage was the same officer who had pointed his gun earlier in the incident.

Victim: § 87(2)(b)

- § 87(2)(b), § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male with blond hair and blue eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on April 2, 2014 (Encl. 8B-E). § 87(2)(g)

§ 87(2)(b) description of the scene that was being filmed matched § 87(2)(b). At the time of the incident, he was dressed in a similar fashion to § 87(2)(b) and was carrying a prop gun. § 87(2)(b) described only two officers, Sgt. Verbrugge and PO Bello, initially approaching. While § 87(2)(b) initially stated that both officers shouted, “Put your fucking guns down,” he later stated that he only specifically recalled PO Bello stating this.

Both Sgt. Verbrugge and PO Bello had their guns drawn. PO Bello’s gun was pointed at § 87(2)(b) throughout the incident. While § 87(2)(b) did not recall where Sgt. Verbrugge pointed his gun, he recalled that Sgt. Verbrugge put his gun down within moments of approaching the production. PO Bello told § 87(2)(b) “If you don’t put your guns down in ten seconds, I’m going to shoot you.” PO Bello kept his gun out while he spoke to PO Savas.

When § 87(2)(b) and the other crew members tried to explain the situation to PO Bello, he repeatedly responded, “I don’t give a fuck.” § 87(2)(b) then asked PO Bello if he was going to shoot him. At that point, PO Bello finally lowered his weapon. He told § 87(2)(b) that he had received a report of people “running around with guns.” § 87(2)(b) estimated that PO Bello kept his gun pointed for approximately five minutes before finally lowering it.

While § 87(2)(b) corroborated that PO Bello rushed towards him after he holstered his gun and started yelling at him, he did not allege that PO Bello used any profanity while speaking to him.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *old at the time of the incident, is a black male.* § 87(2)(b)

Telephone Statement

§ 87(2)(b) provided a telephone statement on February 27, 2014 (Encl. 9A). § 87(2)(g)

When PO Bello initially approached and pointed his gun towards § 87(2)(b) and § 87(2)(b) he repeatedly stated, “Shut the fuck up,” and, “You’re about to get shot.” When PO Savas approached PO Bello, PO Bello told him, “You’re going to be shot in three seconds.” § 87(2)(b) like § 87(2)(b) did not allege that PO Bello used any profanity when he argued directly with § 87(2)(b).

Attempts to Schedule a Sworn Statement

§ 87(2)(b) provided § 87(2)(b) telephone number and e-mail address during his initial complaint. During an initial call on February 27, 2014, § 87(2)(b) provided his address, as well as a telephone statement. He scheduled an in-person interview for March 6, 2014. He failed to appear for this appointment, and did not call ahead to cancel or reschedule. A missed appointment letter was mailed to him on March 7, 2014. The letter was not returned to the CCRB

by the US Postal Service. During a second phone call on March 7, 2013, § 87(2)(b) rescheduled his interview for March 20, 2013. § 87(2)(b) however, did not appear for this interview either. He did not call ahead to cancel or reschedule this appointment. To date, § 87(2)(b) has not reached out to the CCRB to reschedule his interview.

Witness: § 87(2)(b)

- § 87(2)(b) 33 years old at the time of the incident, is a black male. § 87(2)(b)

Telephone Statement

On March 7, 2014, § 87(2)(b) provided a telephone statement (Encl. 10A). § 87(2)(g)

§ 87(2)(b) stated that both Sgt. Verbrugge and PO Bello pointed their guns at one of the two actors playing an officer. He did not recall if this was § 87(2)(b) or § 87(2)(b) PO Bello threatened to shoot this actor if he did not drop his weapon. Both Sgt. Verbrugge and PO Bello kept their weapons pointed until PO Savas spoke to them and convinced them that a movie was being filmed.

§ 87(2)(b) did not mention PO Bello using any profanity when he ran up towards § 87(2)(b). Instead, he alleged that PO Bello threatened to arrest § 87(2)(b). He did not recall the specific phrasing of this request. § 87(2)(b) did not allege that PO Bello used any profanity towards him. § 87(2)(b) made no mention of attempting to step between PO Bello and § 87(2)(b) during this confrontation.

Civilian Witnesses

§ 87(2)(b) provided the investigation with the production's call sheet, containing the names, e-mail addresses and phone numbers of more than twenty individuals, most of whom were present during the incident. § 87(2)(g)

NYPD Statement(s):

Subject Officer: PO BENJAMIN BELLO

- PO Bello, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) Hispanic male with black hair and brown eyes.
- On February 17, 2014, PO Bello worked from 3:00 p.m. until 11:35 p.m. He was assigned as Sgt. Michael Verbrugge's operator. PO Bello was in uniform, and assigned to marked RMP #4575.

Memo Book

At 10:05 p.m. on February 17, 2014, PO Bello stopped a male at West 139th Street and Fifth Avenue. During this stop, he was approached by a taxi driver and two passengers, who informed him that there was a shooting going on at West 138th Street and Fifth Avenue. When PO Bello

responded to this location, he found several males holding firearms. PO Bello ordered them to drop their weapons. An officer from the NYPD Movie and TV Unit then approached PO Bello and explained that a movie was being filmed at the location, and that the armed males were actors (Encl. 11A-C).

CCRB Testimony

PO Bello was interviewed at the CCRB on May 7, 2014 (Encl. 11D-F). At approximately 9:42 p.m. on February 17, 2014, PO Bello and Sgt. Verbrugge stopped an unidentified male for public urination near the intersection of West 139th Street and Fifth Avenue, in Manhattan. Sgt. Verbrugge had decided to let the male go with a warning, but opted to check his name for any active warrants before releasing him. PO Bello stood with the male next to their vehicle, while Sgt. Verbrugge was inside the vehicle, conducting the warrant check. PO Bello had not received any sort of notification that there was a film production active in the area at the time.

As PO Bello waited, a taxi pulled up behind the officers' vehicle. The driver and two passengers emerged from the taxi and told PO Bello that there were several males holding guns a block south, at the intersection of West 138th Street and Fifth Avenue. PO Bello did not learn these individuals' names. PO Bello leaned into his vehicle, informed Sgt. Verbrugge of the situation, and then ran south. PO Bello did not see what Sgt. Verbrugge did after he ran towards the incident. As PO Bello approached the location, he heard several gun shots. He did not recall how many shots he heard. He only heard the shots, and did not see where they originated from.

PO Bello arrived at the location moments later. He observed three males, identified by the investigation as § 87(2)(b), § 87(2)(b) and § 87(2)(b) standing in front of an SUV parked on West 138th Street, only a few yards from the intersection with Fifth Avenue. All three males were holding guns and pointing them at each other. A crowd of people was standing on the sidewalk, beyond the SUV. PO Bello did not notice any kind of equipment that would normally be associated with a film production, such as cameras, lights, monitors, tents, or trailers. The street had not been blocked off.

§ 87(2)(b) and § 87(2)(b) were wearing bulletproof vests and shields around their necks, similar to what a plainclothes officer might be wearing. Neither of these individuals, however, was wearing the color of the day around their arms. PO Bello explained that in order to prevent friendly fire, plainclothes officers are instructed to wear the color of the day on the wrist of the arm that they use to fire their weapons. Consequently, PO Bello immediately suspected that despite their dress, § 87(2)(b) and § 87(2)(b) were not police officers.

Once PO Bello arrived at the intersection, he drew his gun and pointed it towards the three actors. He did not point the gun at any one individual, instead keeping it pointed between all three, so that he would be able to aim it at any one individual at a moment's notice with a minimum of adjustment. He shouted, "Police, drop your weapons!" § 87(2)(b) immediately dropped his gun. PO Bello then looked to § 87(2)(b) and asked him if he was a police officer. § 87(2)(b) replied that he was not. § 87(2)(b) then dropped his gun as well. § 87(2)(b) however, continued holding his gun.

A uniformed officer, identified by the investigation as PO Paul Savas, stepped forward from the crowd and approached PO Bello. He told PO Bello that he was from the NYPD Movie and TV Unit, and that he had interrupted a movie, rather than an armed dispute. As PO Savas approached,

PO Bello observed Sgt. Verbrugge walk up towards him from behind. PO Bello had not seen when Sgt. Verbrugge had arrived at the location. He did not recall if Sgt. Verbrugge had his gun drawn or pointed, or if Sgt. Verbrugge said anything to the civilians when he arrived. Sgt. Verbrugge grabbed PO Savas by the arm and pulled him aside. Sgt. Verbrugge and PO Savas spoke for a few moments. PO Bello did not hear what they said to each other.

As Sgt. Verbrugge and PO Savas spoke, PO Bello turned his attention to § 87(2)(b). § 87(2)(b) still had his gun in his hand at this time, but was now pointing it at the ground. PO Bello ordered § 87(2)(b) to drop his gun. When § 87(2)(b) did not comply, PO Bello repeated the command several times in a forceful tone. He did not recall how many times he repeated the command, or what specific phrasing he used. Due to the gravity of the situation and the threat § 87(2)(b) weapon posed, however, PO Bello felt that it was likely that he might have used profanity when issuing these commands, and threatened to shoot § 87(2)(b) if he did not comply. PO Bello explained that he used this harsh language to gain § 87(2)(b) compliance, and to maintain control of a potentially dangerous situation. While § 87(2)(b) never dropped his weapon, eventually either § 87(2)(b) or § 87(2)(b) walked up to § 87(2)(b) pulled the gun from his hand, and dropped it to the ground.

With all three males now disarmed, PO Bello took a step back, and drew his gun back towards his chest. He asked Sgt. Verbrugge if the situation was under control. When Sgt. Verbrugge replied that it was, PO Bello holstered his gun. Several civilians, including both the actors and members of the crowd, then approached PO Bello and reiterated that they were filming a movie. PO Bello looked around and noticed that there was a marked police car parked on Fifth Avenue, around the corner, and that a member of the crowd was holding up an iPad to record the incident. He did not see any other indications that he was on a movie set.

Shortly after PO Bello put away his gun, he heard a call over the radio reporting shots being fired at West 138th Street and Fifth Avenue. He did not state who made this call. Within minutes, a large number of additional uniformed officers responded to the location. When they arrived, Sgt. Verbrugge and PO Savas explained the situation to them. The responding officers took no significant actions at the location, and did not speak to the civilians.

After PO Bello put away his gun, § 87(2)(b) began taunting him, asking if he was going to shoot somebody. While PO Bello had determined by that time that none of the civilians posed any threat, he was still restless and agitated. He was also frustrated with § 87(2)(b) in particular for not having dropped his weapon immediately, thus exacerbating an already tense situation. PO Bello told § 87(2)(b) to shut up. While he did not recall what specific words he used, PO Bello stated that it was possible, due to his frustration, that he used some sort of profanity towards § 87(2)(b) as he spoke.

Once it was determined that no criminal activity was taking place at the location, the gathered officers began returning to their vehicles and leaving the location. No arrests were made, and no summonses were issued. PO Bello did not prepare a Stop, Question and Frisk Report in regards to the incident, as he was unsure if he was required to do so under the circumstances.

PO Bello was played an audio recording taken from the production's boom microphone. No gunshots are heard on the recording. When asked again if he had heard gunshots when he approached, PO Bello repeated that he had. PO Bello could not recognize the voice heard at 0:50,

stating, “Show me your fucking shit or you’ll get shot.” He believed, however, based on the context in the recording, that it was likely his voice.

When shown cell phone footage taken of the incident taken by a crew member, PO Bello identified the bald uniformed officer seen at 0:44 as Sgt. Verbrugge, and the uniformed officer in the black hat seen speaking to him as PO Savas. He identified the white male in the grey sweatshirt as § 87(2)(b) and the uniformed officer seen speaking to § 87(2)(b) as himself. After observing himself use several profanities towards § 87(2)(b) in the video, PO Bello repeated that he used this language because he was frustrated with § 87(2)(b) conduct during the encounter.

Subject Officer: SGT. MICHAEL VERBRUGGE

- *Sgt. Verbrugge, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male. He is bald, and has blue eyes.*
- *On February 17, 2014, Sgt. Verbrugge worked from 2:50 p.m. until 11:47 p.m. He worked as the patrol supervisor for the 32nd Precinct. His operator was PO Benjamin Bello. Sgt. Verbrugge was in uniform, and assigned to marked RMP #4575.*

Memo Book

At 10:00 p.m. on February 17, 2014, Sgt. Verbrugge was flagged down by an unidentified complainant, who stated that shots were fired at West 138th Street and Fifth Avenue. When Sgt. Verbrugge responded to the location, he found two males with guns, wearing bulletproof vests and shields around their necks. Further investigation determined that these individuals were actually filming a movie under the supervision of the NYPD Movie and TV Unit. No actual shots were fired (Encl. 12A-C).

CCRB Testimony

Sgt. Verbrugge was interviewed at the CCRB on May 7, 2014 (Encl. 12D-F). § 87(2)(g)

Under normal circumstances, when a movie is being filmed, the Movie and TV Unit notifies both the command’s telephone switchboard (TS) operator and its Community Affairs officers well in advance of the production. These notifications are then passed on directly to the patrol supervisor. Sgt. Verbrugge, the patrol supervisor at the time, received no such notifications. After the incident, he returned to the 32nd Precinct stationhouse and confirmed in-person with both the TS operator and the Community Affairs desk that no such notification had been given. Sgt. Verbrugge did not hear any notifications over the radio while on patrol.

Sgt. Verbrugge did not hear what the individuals in the taxi told PO Bello. PO Bello himself relayed their message, informing Sgt. Verbrugge that a shooting had occurred at West 138th Street and Fifth Avenue. Sgt. Verbrugge himself did not hear any gunshots at any point. Sgt. Verbrugge followed PO Bello to the intersection, arriving only seconds after PO Bello did. Sgt. Verbrugge reported the incident over the radio as he ran to the intersection.

Sgt. Verbrugge’s description of the situation at West 138th Street and Fifth Avenue, including the physical location of the actors, the position of the crew members, and the equipment the production was using was mostly consistent with PO Bello’s description. Sgt. Verbrugge only

specifically recalled one of the actors, identified by the investigation as § 87(2)(b) as being dressed as a plainclothes officer. He did not recall where the actors were pointing their guns.

Sgt. Verbrugge did not recall if he drew or pointed his weapon at this point, or whether he issued any statements or commands towards the actors at that time. He did recall PO Bello pointing his gun towards the actors and telling them, "Police, drop your gun!" Sgt. Verbrugge did not recall if he or PO Bello used any profanity at this point, or whether they threatened to use any force against the actors. Sgt. Verbrugge also stated that one of the actors, identified by the investigation as § 87(2)(b) did not comply with PO Bello's command at first. After PO Bello repeated the command several times, however, § 87(2)(b) finally complied and dropped his weapon to the ground himself. Once all three actors were disarmed, PO Bello holstered his own weapon.

Once the three males and PO Bello had all stopped pointing their weapons, PO Savas emerged from the crowd on the sidewalk and approached the officers, Sgt. Verbrugge pulled him aside to speak with him. PO Savas confirmed that the actors were only filming a movie, and were not engaged in criminal behavior. Sgt. Verbrugge became upset, and chastised PO Savas for not issuing the appropriate notification to the command.

Sgt. Verbrugge did not recall PO Bello getting into any dispute with § 87(2)(b) or any of the other actors. He did not recall any of the actors asking PO Bello if he was going to shoot them. Beyond ordering the three actors to drop their weapons, Sgt. Verbrugge did not recall PO Bello shouting at any of the civilians, or using any profanity at any point.

The audio footage from the boom microphone was played for Sgt. Verbrugge. He did not recognize the voice heard on the recording at 0:50 that states, "Show me your fucking shit or you might be shot." Sgt. Verbrugge did not recall hearing this statement.

Subject Officer: PO PAUL SAVAS

- PO Savas, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male with brown hair and brown eyes.
- PO Savas worked from 2:15 p.m. on February 17, 2014 until 12:30 a.m. on February 18, 2014. He was assigned as the Movie and TV Unit liaison overseeing filming of § 87(2)(b). He did not have a partner. PO Savas was in uniform, and assigned to marked RMP #1817.

Memo Book

PO Savas did not have any memo book entries in regards to the incident (Encl. 13A-B).

CCRB Testimony

PO Savas was interviewed at the CCRB on April 10, 2014 (Encl. 13C-E). On February 17, 2014, PO Savas, a member of the NYPD Movie and TV Unit, was assigned to oversee the production of the film § 87(2)(b). He was tasked with overseeing the proper use of the production's prop firearms. Part of this duty is to issue notifications to local commands when a scene is filmed that involves the discharge of prop firearms. Before these scenes are filmed, the liaison officer from the Movie and TV Unit notifies the local precinct, both by calling the stationhouse by telephone and broadcasting a warning over the radio. This is done to ensure that

officers from the local command do not respond to the sound of gunfire and interrupt the production.

Production had begun at approximately 4:00 p.m. on West 138th Street, between Fifth Avenue and Lenox Avenue, in Manhattan. The production had been filming a scene at that time involving simulated gunfire. PO Savas had issued the proper warnings by telephone and radio before filming. At approximately 8:30 p.m., the production moved down the street to the intersection with Fifth Avenue and started filming a second scene. This scene involved actors holding firearms, without actually firing them. As such, PO Savas issued no notifications, by either telephone or radio, beforehand. The street was not closed down for production, and no signage had been posted in the area. The crew had minimal equipment, with only a single camera and boom microphone.

In this second scene, two actors playing civilians, identified by the investigation as § 87(2)(b) and § 87(2)(b) were stopped by two actors playing plainclothes police officers, identified by the investigation as § 87(2)(b) and § 87(2)(b). § 87(2)(b) § 87(2)(b) and § 87(2)(b) all carried prop firearms. The scene was staged in the street, while PO Savas and the crew members observed from the sidewalk. While PO Savas did not recall exactly how far away he and the crew stood, he recalled that it was a significant distance, and that they were told to step back several times, as their reflections had been visible in the windows of parked vehicles. The production filmed four or five takes without incident at the intersection.

At approximately 9:42 p.m., PO Savas was standing on the sidewalk with the rest of the crew when he heard shouting coming from the intersection. He had not been paying attention to the scene until he heard this shouting. When he stepped forward to see what was happening, he observed two uniformed officers standing with their guns drawn and pointed at the actors. PO Savas did not recall these officers' names, but believed that they were both sergeants from the 32nd Precinct. The investigation identified these officers as Sgt. Verbrugge and PO Bello. PO Savas did not specify which of the actors they were pointing their guns at. Both officers shouted, "Drop the guns." PO Savas did not recall either officer using profanity while addressing the actors, or threatening to shoot any of them. He did not recall any of the cast or crew members saying anything to either officer at that point.

§ 87(2)(b) and § 87(2)(b) both dropped their weapons immediately. § 87(2)(b) however, did not drop his, and instead held it loosely in his right hand. PO Savas walked up behind § 87(2)(b) took the gun from his hand, and dropped it to the ground. He then stepped in front of § 87(2)(b) and identified himself verbally as a police officer. Sgt. Verbrugge holstered his weapon and took PO Savas aside to speak with him. PO Bello kept his weapon out and pointed towards the actors. PO Savas explained to Sgt. Verbrugge that he was overseeing a movie production. Sgt. Verbrugge told him that he had received a report from an unidentified female that a carjacking was in progress at the intersection.

While PO Savas spoke with Sgt. Verbrugge, he heard PO Bello and § 87(2)(b) shouting at each other. When he turned to see what was happening, he saw that PO Bello no longer had his weapon out. PO Savas did not recall what was said between the two, and did not know how the argument was resolved. He did not recall hearing PO Bello use any profanity at this point.

Several additional officers, in both marked and unmarked vehicles, arrived at the location at this time. PO Savas did not know any of these officers, and did not know what command they were

from. Once they began arriving, Sgt. Verbrugge put out a call over the radio stating that no further units were required. As PO Savas had established for the officers that no criminal activity was going on, the officers left and allowed the production to resume. No arrests were made and no summonses were issued.

The audio footage from the boom microphone was played for PO Savas. He did not recognize the voice heard on the recording at 0:50 that states, “Show me your fucking shit or you might be shot.” PO Savas did not recall hearing this statement.

When shown cell phone footage of the incident taken by a crew member, PO Savas identified himself as the officer seen at 0:45 wearing a black cap. PO Savas identified the bald officer that he is seen speaking with as the officer with whom he stepped aside and spoke with one-on-one. When shown a section of the video at 2:00, in which an officer can be heard using several profanities, PO Savas stated that he did not recall hearing these remarks.

NYPD Document(s)

Handwritten 32nd Precinct Stop, Question and Frisk Report Index

No Stop, Question and Frisk Reports were prepared regarding the incident (Encl. 15H-N).

SPRINT #D14021722968

At 9:43 p.m. on February 17, 2014, the 32nd Precinct patrol supervisor reported that an unidentified situation at East 138th Street and Fifth Avenue, in Manhattan, was under control. He requested that one additional unit respond to the location. Several units, including Sectors J and G from the 32nd Precinct and the patrol supervisor from the 25th Precinct, responded to the location. At 9:45 p.m., the 32nd Precinct sergeant stated that no further units were required at the location (Encl. 15O-R).

32nd Precinct Roll Call

During tour 3 on February 17, 2014, Sgt. Verbrugge worked as the patrol supervisor. He was the only patrol supervisor on duty at the time. PO Bello was his operator (Encl. 15AA-AG).

Movie and TV Unit Roll Call

PO Savas was assigned to oversee the production of “§ 87(2)(b)” on February 17, 2014, pursuant to filming permit #§ 87(2)(b). The production was scheduled between 5:00 p.m. and 10:00 p.m. at West 138th Street and Fifth Avenue, in Manhattan. The filming included prop guns and a carjacking scene (Encl. 15AH-AI).

Other Evidence

Movie Footage

§ 87(2)(b) provided video footage from the production’s main camera, depicting the initial scene that the officers interrupted. The footage has no sound, as the audio is recorded separately by a boom microphone. The camera looks over the intersection of West 138th Street and Fifth

Avenue, in Manhattan. In it, a grey sedan is parked in front of a black SUV. At the start, two unidentified crew members hold up an iPad with an image of a movie clapboard, before moving out of the shot.

At 0:30, a male, identified by the investigation as § 87(2)(b) exits the sedan and approaches the SUV. Another male, identified by the investigation as § 87(2)(b) exits the SUV and points a gun at § 87(2)(b). At 0:45, two other males, identified by the investigation as § 87(2)(b) and § 87(2)(b) run from behind the SUV and point guns at § 87(2)(b). Both are wearing street clothes. § 87(2)(b) is wearing a shield around his neck, but § 87(2)(b) is not.

At 0:50, a uniformed officer, identified by the investigation as PO Bello, runs towards the intersection from the far side of the street. All of the actors turn towards PO Bello and hold their guns out towards their sides (Encl. 14F-G).

Movie Audio

§ 87(2)(b) provided audio from the production's boom microphone. While the audio covers a slightly longer time frame than the video, it covers the same time period. At the beginning, a female voice states, "Roll one, scene seventeen, take four." A loud clapping noise can then be heard.

At 0:30, a car can be heard honking. A male voice, identified by the investigation as § 87(2)(b) shouts, "Yo, what the fuck?" After a pause, the same voice states, "Whoa, my man, relax, it's not even that serious. Listen, I just want to get home to my girl. Be easy!" At 0:45, two other male voices, identified by the investigation as § 87(2)(b) and § 87(2)(b) shout, "Drop the fucking gun!" and, "Drop the weapon!"

At 0:50, several voices can be heard in the background shouting, "Whoa," and, "It's a movie!" Another male voice, identified by the investigation as PO Bello, states, "Show me your fucking shit, you're about to get shot" (Encl. 14F-G).

Cell Phone Footage

§ 87(2)(b) provided cell phone video footage, taken by an unidentified female member of the crew. The footage shows the aftermath of the officers' approach. It takes place at the same location as the previous videos. In this video, several members of the crew have joined the actors in the street. Several police vehicles, both marked and unmarked, are seen in the background with their lights running.

At 0:38, a male, identified by the investigation as § 87(2)(b) asks a uniformed officer, identified by the investigation as PO Bello, "Are you going to shoot me?" § 87(2)(b) repeats this question several more times. At 1:04, PO Bello replies, "If a civilian runs over to me and says he's running over there with a gun, you're standing with a fucking gun out..." § 87(2)(b) replies, "I get it, but we're filming a movie." PO Bello then states, "Okay, I don't give a fuck." Several crew members approach PO Bello and speak to him, but the sound of a siren on a nearby police vehicle makes their conversation inaudible.

At 1:30, PO Bello walks towards § 87(2)(b) asking him, "What did you fucking say to me? No, no, what the fuck did you say to me?" A crew member, identified by the investigation as § 87(2)(b)

§ 87(2)(b) then steps between PO Bello and § 87(2)(b) separating them. Several crew members then pull § 87(2)(b) away from PO Bello.

After this confrontation, the officers and civilians mill about for several more minutes, before the officers return to their vehicles and drive away. No further profanity is heard (Encl. 14-G).

Status of Civil Proceedings

- No civilian has filed a notice of claim with the City of New York as of May 15, 2014 with regard to the incident (Encl. 19V).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian(s) CCRB History

- § 87(2)(b) filed the following CCRB complaint (Encl. 3A):
 - § 87(2)(b) [REDACTED]
- This is the first CCRB complaint involving § 87(2)(b) (Encl. 3B).

Subject Officer(s) CCRB History

- Sgt. Verbrugge has been a member of the service for eight years and there are no substantiated CCRB allegations against him (Encl. 2A).
- PO Benjamin Bello has been a member of the service for one year and there are no substantiated CCRB allegations against him (Encl. 2B).
- PO Paul Savas has been a member of the service for seven years and there are no substantiated CCRB allegations against him (Encl. 2C).

Conclusion

Identification of Subject Officer(s)

- Neither the civilians nor PO Savas were able to provide names or shield numbers for the officers that initially approached the production and pointed their guns at them. The SPRINT for the incident confirmed that a patrol supervisor from the 32nd Precinct was present at the incident. Sgt. Bello, the 32nd Precinct patrol supervisor at the time, and PO Bello, his operator, can be seen during the video footage. Both officers identified themselves in the video footage, and stated that they were the first two officers to respond to the location. Therefore, gun point allegations have been pleaded against them.
- PO Bello identified himself as the officer seen in the cell phone footage using profanity towards § 87(2)(b). Therefore, a discourtesy allegation has been pleaded against him.

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

- § 87(2)(g)
- § 87(2)(b) alleged that PO Bello threatened to arrest § 87(2)(b) during their direct confrontation. No other civilians made this allegation, and no such threat is heard in the video of the incident. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Force – PO Benjamin Bello pointed his gun at § 87(2)(b) and § 87(2)(b)

Allegation B: Force – Sgt. Michael Verbrugge pointed his gun at § 87(2)(b) and § 87(2)(b)

It is undisputed that Sgt. Verbrugge and PO Bello stopped § 87(2)(b) and § 87(2)(b) and that PO Bello pointed his gun at them. While several individuals, including Sgt. Verbrugge and § 87(2)(b) did not specifically recall if Sgt. Verbrugge had his gun drawn or pointed at the time of the approach, others, including § 87(2)(b) and PO Savas, specifically stated that Sgt. Verbrugge had his gun pointed as well. § 87(2)(g)

It is undisputed that § 87(2)(b) § 87(2)(b) and § 87(2)(b) were all pointing prop firearms at each other at the time of the officers' approach. Both Sgt. Verbrugge and PO Bello stated that they had been told by three unidentified individuals that a shooting was occurring at the location. While none of the other individuals witnessed this report, both PO Savas and the cell phone footage indicate that Sgt. Verbrugge and PO Bello cited this report as the reason they had responded to the location. § 87(2)(g)

It is also undisputed that the production had a minimal presence at the location. The equipment was limited to only a single camera and boom microphone. The street was not closed off, and the crew had positioned itself at a distance from the scene. There was no signage posted, and no tents or trailers set up. § 87(2)(g)

PO Savas, in charge of coordinating with the NYPD, acknowledged that no notification was given beforehand.

An officer requires reasonable suspicion that an individual is involved, has been involved, or is about to be involved in criminal behavior in order to stop them. People v. DeBour, 40 N.Y.2d 210 (1976) (Encl. 1C-M). Officers are given broad authority to draw and display their firearms when they believe that their safety is in danger. PD v. Gliner, OATH Index 955/00 (2000) (Encl. 1N-AF).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C: Discourtesy – PO Benjamin Bello spoke discourteously to § 87(2)(b)

In the cell phone video footage provided to the CCRB by § 87(2)(b) PO Bello can be heard using a number of profanities while speaking to § 87(2)(b) including, “I don’t give a fuck,” and, “What did you fucking say to me?,” and, “What the fuck did you say to me?” When shown the footage, PO Bello stated that he used profanity in this situation because of the high level of stress he was experiencing at the time, due as a result of responding to what he believed was an armed robbery, § 87(2)(b) uncooperative attitude, and § 87(2)(b) initial refusal to drop his gun.

According to NYPD Patrol Guide Procedure 203-09, officers are to be courteous and respectful when dealing with the public (Encl. 1AE). Limited use of profanity, when used to maintain order in a stressful street encounter, does not constitute misconduct. NYPD v. White, OATH Index 78667/03 (Encl. 1AH-AK).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

§ 87(4-b) § 87(2)(g)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date